



Ampol – EG Australia

MN-01019

This document contains a summary of the ACCC's reasons for its determination of 2 June 2026. This document does not constitute the statement of the ACCC's reasons for making the determination pursuant to sections 51ABZE(4)(b) and 51ABZZI(1)(b) of the *Competition and Consumer Act 2010* (Cth). The statement of the ACCC's reasons will be published separately following a review for confidential information.

Summary of Reasons

1. On 10 October 2025, Ampol Limited lodged a notification in respect of Ampol Retail Holding Pty Ltd's proposed acquisition of 100% of the share capital in EG Group Australia Pty Ltd and EG AsiaPac Holdings Limited (the **Acquisition**) with the Australian Competition and Consumer Commission (**ACCC**).
2. On 20 January 2026, the ACCC decided the Acquisition would be subject to a Phase 2 review and subsequently issued a Notice of Competition Concerns (**NOCC**) to Ampol on 27 February 2026 and published a summary of the NOCC on the Acquisitions Register on 2 March 2026.
3. Ampol and EG Australia are both retail suppliers of fuel, including petrol and diesel, and convenience products in all Australian states and territories. Ampol owns and operates 576 sites under the Ampol brand, and 46 under the U-GO brand. EG Australia owns and operates 512 retail sites.
4. The ACCC considered the likely competitive effects of the Acquisition in the following markets:
 - The retail supply of petrol and diesel in local markets in which Ampol and EG Australia both have retail sites.
 - The retail supply of petrol and diesel in metropolitan-wide markets of Adelaide, Brisbane, Canberra, Melbourne, Perth and Sydney.
5. Based on the material before it, the ACCC is satisfied that, disregarding any conditions the Acquisition could, in all the circumstances, have the effect of substantially lessening competition as a result of horizontal unilateral effects in 39 local markets.
6. In each of the 39 local markets:
 - The Acquisition would remove a direct and significant competitor to Ampol and thereby remove the competitive constraint that the Parties currently exert on each other, having regard to geographic proximity and local market conditions.

- Post-acquisition, consumers may not consider remaining competitors in local markets to be sufficiently close substitutes due to differences in non-fuel offerings, site facilities, and location, such that those competitors provide a less effective competitive constraint on Ampol.
 - The Acquisition would substantially increase concentration.
 - Barriers to entry are high, such that rival fuel retailers are unlikely to be able to enter quickly and at relatively low cost.
7. The ACCC has determined under section 51ABZE(1) of the Act that the Acquisition may be put into effect, subject to conditions. The conditions are:
- a) Ampol Limited (ACN 004 201 307) must divest the Divestiture Business by the end of the Initial Sale Period.
 - b) Ampol Limited (ACN 004 201 307) must give an executed undertaking in the form at Attachment B of the Determination to the ACCC no later than 5 business days from the date of this Determination for the purposes of section 87B of the Act and comply with that undertaking.

(together, the **Conditions**)

8. The defined terms Divestiture Business and Initial Sale Period are as defined in the section 87B undertaking that Ampol Limited (ACN 004 201 307) must give and comply with pursuant to the Conditions.
9. The objective of the Conditions is to address the competition issues identified in 39 local markets through divestiture of 41 retail fuel sites to an ACCC-approved purchaser. The ACCC has approved Dib Group (Metro Petroleum) as purchaser.
10. In 25 of the 39 local markets, the Conditions remove the competitive overlap between Ampol and EG Australia. The Conditions also facilitate the entry or expansion of a competitor into these local markets, preserving choice for consumers and addressing the impact of the Acquisition on competition. In the other 14 markets, where Ampol will have multiple sites, the Conditions reduce Ampol's post-acquisition share and divestiture to the purchaser approved by the ACCC would facilitate the entry or expansion of an independent retailer.
11. The ACCC identified competition concerns in the retail supply of petrol in the metropolitan markets of Brisbane, Canberra, Melbourne, and Sydney. In any case, the Conditions reduce the extent of aggregation brought about by the Acquisition in these metropolitan markets and divestiture to the purchaser approved by the ACCC would facilitate the expansion of an independent retailer.